

ALITO, J., dissenting

unanimity. None of those decisions went beyond saying that this was a feature of the common-law right or cursorily stating that unanimity was required.²⁴ And as noted, *Williams* had already held that the Sixth Amendment did not preserve all aspects of the common-law right.

Third, the failure of Justice White (and Justice Powell) to take into account the supposedly racist origins of the Louisiana and Oregon laws should not be counted as a defect for the reasons already discussed. See *supra*, at 142.

Fourth, it is hard to know what to make of the functionalist charge. One Member of the majority explicitly disavows this criticism, see *ante*, at 112 (SOTOMAYOR, J., concurring in part), and it is most unlikely that all the Justices in the majority are ready to label all functionalist decisions as poorly reasoned. Most of the landmark criminal procedure decisions from roughly *Apodaca*'s time fall into that category. See *Mapp v. Ohio*, 367 U.S. 643, 654 (1961) (Fourth Amendment); *Miranda v. Arizona*, 384 U.S. 436, 444 (1966) (Fifth Amendment); *Gideon v. Wainwright*, 372 U.S. 335, 344–345 (1963) (Sixth Amendment); *Furman v. Georgia*, 408 U.S. 238, 239 (1972) (*per curiam*) (Eighth Amendment).²⁵ Are they all now up for grabs?

The functionalist criticism dodges the knotty problem that led Justice White to look to the underlying purpose of the jury-trial right. Here is the problem. No one questions that the Sixth Amendment incorporated *the core* of the common-law jury-trial right, but did it incorporate *every feature* of the right? Did it constitutionalize the requirement that there be 12 jurors even though nobody can say why 12 is the magic number? And did it incorporate features that

²⁴ See, e.g., *Andres*, 333 U.S., at 748; *Thompson*, 170 U.S., at 351.

²⁵ Five Justices in *Furman* found that the Eighth Amendment imposes an evolving standard of decency, 408 U.S., at 255–257 (Douglas, J., concurring); *id.*, at 265–269 (Brennan, J., concurring); *id.*, at 309–310 (Stewart, J., concurring); *id.*, at 312–314 (White, J., concurring); *id.*, at 316, 322–333 (Marshall, J., concurring), and our subsequent cases have done the same.